FEDERAL COURT OF AUSTRALIA
PRINCIPAL REGISTRY

HARRY GIBBS COMMONWEALTH LAW COURTS
119 NORTH QUAY
BRISBANE QLD 4000

27 March 2023

Dr Rich McLean

By email: richarddrawstuff@gmail.com

Dear Dr McLean,

I refer to your various correspondence dated 7 March 2023, 23 March 2023 and 24 March 2023 and addressed to, amongst others, the Chief Executive Officer and Principal Registrar of the Federal Court of Australia (Federal Court). Your correspondence has been referred to me for consideration.

My Authority

The Chief Executive Officer and Principal Registrar is the Principal Officer of the Federal Court for the purposes of the *Public Interest Disclosure Act 2013* (Cth) (PID Act). I am an officer of the Federal Court engaged under the *Public Service Act 1999* (Cth) and authorised by the Federal Court's Chief Executive Officer to, amongst other things, carry out the functions of an authorised officer under the PID Act on behalf of the Federal Court.

The Federal Court, Federal Circuit and Family Court of Australia (FCFCOA) and the National Native Title Tribunal (NNTT) each comprise a part of a single entity, for the purposes of the *Public Governance, Performance and Accountability Act 2013* (Cth), known as the Federal Court of Australia.

Your Correspondence

On 7 March 2023 you sent an email to Sia Lagos, an authorised person to receive a PID at the Federal Court and FCFCOA. In that email you highlighted that you wanted your struggles, oppression, victimisation and detriments in psychological, financial, reputation and other ways to be acknowledged and compensated. Your email contained links to what would be identified as additional documents, but which resulted in significant delays, given the need to ensure the security and integrity of our systems against an unknown source. In those documents you outline your concerns with respect to a number of officials at various agencies.

Initial Assessment

In making the initial assessment mentioned above, I am required to consider whether there are reasonable grounds for deciding that what has been disclosed could be a public interest disclosure under the PID Act.

In doing so, I must consider if:

- the person who made the disclosure is a "public official" for the purposes of the PID Act;
- the disclosure has been made to someone who is authorised under the PID Act to receive it;
- it is an internal disclosure, with the contentions tending to show disclosable conduct or the person making the disclosure reasonably believes that these contentions tend to show disclosable conduct; and
- the "disclosable conduct" falls within the definitions set out in the PID Act.

My Assessment of Your Contentions

A public interest disclosure can only be made by a "public official"; paragraph 26(1)(a) PID Act. The meaning of "public official" is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to include employees of organisations which provide goods or services under a Commonwealth contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act.

On the information you have provided me, I am satisfied that you are, or were, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.

A public interest disclosure can only be made to a person who is authorised to receive it; section 26 PID Act. In respect of an internal disclosure, that is a disclosure to a Commonwealth agency such as the Federal Court, FCFCOA or NNTT, the only authorised recipients are:

- the principal officer of the agency that the relevant conduct relates to or another officer of that agency authorised in writing by that principal officer;
- any Commonwealth agency that the discloser belongs to or last belonged to; or
- the Commonwealth Ombudsman; see section 34 Item 1 PID Act.

I am satisfied from the information that you provided that the conduct disclosed in your email correspondence and attached documents does not relate in any way to the Federal Court, FCFCOA or the NNTT.

As a result, I am not satisfied that the disclosure made in your correspondence and other information which was received by the Federal Court and FCFCOA was provided to an authorised recipient.

I am satisfied, from the correspondence and other information provided, that you believe that the information you have disclosed tends to show one or more instances of conduct that:

- perverts, or is engaged in for the purpose of perverting, or attempting to pervert, the course of justice; section 29 Item 3(a) PID Act;
- conduct that constitutes maladministration; section 29 Item 4 PID Act; and

- conduct that unreasonably results in a danger to the health or safety of one or more persons; or unreasonably results in, or increases, a risk of danger to the health or safety of one or more persons; section 29 Item 8 PID Act.

It is difficult to determine whether this belief is based on reasonable grounds or not. However, for the purposes of the initial assessment I am prepared to assume that the conduct disclosed in your correspondence and other information received is disclosable conduct for the purposes of the PID Act.

Decision

As I am not satisfied that the disclosure made in your correspondence and other information which was received by the Federal Court and FCFCOA was made by a public official or provided to an authorised recipient under the PID Act, there is no reasonable basis on which I can decide that the disclosure is an internal disclosure; subsection 43(2) of the PID Act.

As I am not satisfied that your disclosure meets the requirement of the PID Act to be an internal disclosure, I must decide (in the language used in section 43 of the PID Act as above) not to allocate the handling of that disclosure to any agency.

This means that no further action under the PID Act will be taken by the Federal Court or FCFCOA, or any other Commonwealth agency on the correspondence and other information you provided to the Federal Court or FCFCOA. It does not affect what any other Commonwealth agency might do in respect to any other PID Act disclosures which you have made to that agency or those agencies.

Other Information

As I have decided not to allocate your correspondence and information provided to the Federal Court and FCFCOA as a disclosure under the PID Act, I will not be advising the Principal Officers of the Federal Court or FCFCOA of your disclosure or my decision.

If you are dissatisfied with the manner in which your disclosure has been dealt with in the Federal Court or FCFCOA, you can complain to the Commonwealth Ombudsman. Information about making a complaint is available on the Commonwealth Ombudsman's website at: How to make a complaint | Commonwealth Ombudsman.

The Court will be retaining electronic versions only of the various documents that I have seen.

Yours sincerely



Scott Tredwell
General Counsel